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Google Adwords

Report of Evidence of Use

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Patent Number: USUS7953416B2

Claim Number: (1

52. A process for dynamic routing of customer contacts to service providers via a telephone, comprising the steps of: establishing accounts for a plurality of service providers that provide non-telephonic -based services; permitting the plurality of service providers to bid against one another for a live telephone call based on a customer per-contact charge; creating a contact list comprised of the service providers ranked from the highest bidder service provider to the lowest bidder service provider; receiving a live telephone contact from a customer; routing the live telephone contact from the customer for a live conversation with the highest ranked bidder service provider on the contact list; and charging the service provider account receiving the live telephone contact the customer per-contact amount bid by the service provider.

Element 1:

52. A process for dynamic routing of customer contacts to service providers via a telephone, comprising the steps of:

Google introduced a new feature of "call only" ads on adwords. This feature lets customers call a advertiser directly from Google, without having to visit their website or dial their phone number manually. Google provides a feature of adding a Google forwarding number, that gets displayed on the ad. When a customer call at the google forwarding number (mobile), the call will be rerouted to the advertiser's business number.

Ref 1: https://support.google.com/adwords/answer/2454052

Element 2:

establishing accounts for a plurality of service providers that provide non-

telephonic -based services;

Google adwords allows multiple business to create their adwords profile and submit their "Call only" ads. To create a call only ad, a person have to create a google adword account and the service provided by them are generally non-telephonic like pizza delivery, travel agent etc. Using their google adword accounts, a advertiser can bid, control and manage their "call only" ads.

Ref 1: https://adwords.google.com/cm/CampaignMgmt?__c=2782928167&__u=7720269727&authuser=0&gsessionid=V4j1TkqGD0fwkMn6ICKGWQ#c....

Ref 2: https://support.google.com/adwords/answer/2453991#upgrade

Element 3:

permitting the plurality of service providers to bid against one another for a live telephone call based on a customer per-contact charge;

Google allows advertisers to bid for a spot of their "call only" ad in a Google search page. Call-only campaigns allow advertisers to focus on getting more people to click-to-call you straight from your ads. With these campaigns, advertisers are be able to use CPC bidding based on the value of a call to your business. These bids are pitted against each other for delivering ads to a search page on mobile.

Ref 1: https://support.google.com/adwords/answer/2453991#callonly

Element 4:

creating a contact list comprised of the service providers ranked from the highest bidder service provider to the lowest bidder service provider;

Google Adwords receive a list of advertisers contact/profiles alongside their bid. As per Google's references, the Cost per Call bidding process is similar to Google's cost per click model. Hence, Google creates a list of ads which contains their bid values. Also, Google uses a Quality Score of ads, in addition to bid value, to fix a position of ads for particular search query. In a scenario, where quality score of three ads are same, the ad with highest bid value will be displayed first in the Google search results page. The rets of the results are displayed as per serial order of their bid value.

Ref 1: https://support.google.com/adwords/answer/2454052

Ref 2: https://support.google.com/adwords/answer/2453991#callonly

Ref 3: http://www.chipkin.com/google-adwords-actual-cpc-calculation/

Element 5:

receiving a live telephone contact from a customer;

When an advertiser uses a Google forwarding number with a call-only ad, Google assigns a unique Google phone number to the ad. This phone number, which is either toll-free, equivalent to a local number, or a local number if available, will show with your ad on tablets, laptops, and desktop computers. A clickable “Call” button will show with the ad on high-end mobile devices, to which a customer can call.

Ref 1: https://support.google.com/adwords/answer/2454052

Ref 2: https://support.google.com/adwords/answer/2382961

Element 6:

routing the live telephone contact from the customer for a live conversation with the highest ranked bidder service provider on the contact list; and

When a consumer calls on a Google phone number assigned to the "Call only" ad, which is positioned in the first in the search page, Google reroutes the live call to the advertiser whose ad has been chosen for that position based on the highest bidding value as well as the quality score of the ad.

In case where the search page is an ad unit that shows one ad, and quality score of all the ads bidding for that ad slot, the ad that will be displayed will be one with the highest bid. This is shown in reference 2.

Ref 1: https://support.google.com/adwords/answer/2454052

Ref 2: https://support.google.com/adwords/answer/2996564

Element 7:

charging the service provider account receiving the live telephone contact the customer per-contact amount bid by the service provider.

The maximum amount an advertiser will have to pay to Google for receiving the live call from the customer will be the maximum CPC bid that the advertiser has placed. However, Google do not always charge the amount the advertisers bid. Google uses a maximum bid rule and then calculates the minimum amount of bid that can make the advertisers's ad position higher than the next competitor's ad. Thus, if the maximum bid of A is 40 and B is 35, and if both the ads have a same quality score than the amount charge from A will be 35.1. However, in case of a situation where B bids for 39.9, then A will be charged the exact amount that he has bid for placing the "call only" ad in that position.

Further, advertiser's can opt for a dynamic bidding using "bid adjustment" which helps the advertiser to bid the exact bid dynamically which can make the advertiser's ad in top position with respect to a competitor's bid. In that situation also, Google will be charging the advertiser of the service provider the exact amount of the bid for the "call only" ad conversion or rerouting the live call from the customer.

Ref 1: https://support.google.com/adwords/answer/2732132

Ref 2: https://support.google.com/adwords/answer/2464960?hl=en

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Non-Disclosure Agreement:

We understand that for the purpose of assisting you in collecting data, you may disclose to us certain confidential information that you want to keep confidential; therefore, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, we agree as follows:

1. For a period of twelve (36) months from the date we receive your confidential information ("Effective Date"), we will not use or disclose the information, except: (a) in the event that such information (i) comes into the public domain not through us; (ii) is already known to us at the time of disclosure; (iii) is lawfully otherwise learnt or independently developed by us; or (iv) is required to be disclosed by law.

2. Since a breach of our obligations hereunder may result in irreparable harm to you, we agree that upon such breach or threat thereof, you shall be entitled to specific performance and other injunctive relief without posting a bond, and in the event of disclosures required by court order, we shall promptly notify you of the proceeding.

3. This agreement supersedes all prior discussions and writings and constitutes the entire agreement between you and us with respect to the subject matter hereof. This Agreement shall be binding upon the successors and assigns of the respective parties, and may not be modified except by an instrument executed by both parties.

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